

# COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

## DOCKET



Docket Number: CP-51-CR-0000366-2025

## CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Ashwin Trail

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### CASE INFORMATION

Judge Assigned: Grey, Daine Jr. Date Filed: 01/16/2025 Initiation Date: 01/16/2025  
OTN: U 322176-1 LOTN: Originating Docket No: MC-51-CR-0025280-2024  
Initial Issuing Authority: Bradley K. Moss Final Issuing Authority:  
Arresting Agency: Philadelphia Pd Arresting Officer: McMonagle, Daniel  
Complaint/Citation No.: 2414081965-0025280 Incident Number: 2414081965  
County: Philadelphia Township: Philadelphia City  
Case Local Number Type(s): Case Local Number(s):  
Originating Docket Number MC-51-CR-0025280-2024  
District Control Number 2414081965  
Originating Document Number 2414081965-0025280

### STATUS INFORMATION

Case Status: Closed Status Date: 02/19/2026 Processing Status: Completed Arrest Date: 12/30/2024  
02/19/2026 Awaiting Return of Bail  
01/27/2025 Awaiting Scheduling Conference  
01/16/2025 Awaiting Filing of Information

Complaint Date: 12/30/2024

### CALENDAR EVENTS

| <u>Case Calendar</u>  | <u>Schedule</u>   | <u>Start</u> | <u>Room</u> | <u>Judge Name</u>                | <u>Schedule</u> |
|-----------------------|-------------------|--------------|-------------|----------------------------------|-----------------|
| <u>Event Type</u>     | <u>Start Date</u> | <u>Time</u>  |             |                                  | <u>Status</u>   |
| Formal Arraignment    | 01/29/2025        | 11:00 am     | 1104        | Trial Commissioner Cierra Adkins | Scheduled       |
| Scheduling Conference | 02/19/2025        | 9:00 am      | 905         | Judge Zachary C. Shaffer         | Scheduled       |
| Pretrial Bring Back   | 04/16/2025        | 9:00 am      | 905         | Judge Zachary C. Shaffer         | Scheduled       |
| Scheduling Conference | 05/21/2025        | 9:00 am      | 1108        | Judge Deborah D. Cianfrani       | Scheduled       |
| Waiver Trial          | 09/12/2025        | 9:00 am      | 1108        | Judge Deborah D. Cianfrani       | Continued       |
| Waiver Trial          | 12/05/2025        | 9:00 am      | 1108        | Judge Deborah D. Cianfrani       | Continued       |
| Waiver Trial          | 02/19/2026        | 9:00 am      | 1108        | Judge Deborah D. Cianfrani       | Moved           |
| Waiver Trial          | 02/19/2026        | 9:00 am      | 1108        | Judge Daine Grey Jr.             | Scheduled       |

### DEFENDANT INFORMATION

Date Of Birth: 07/15/1988 City/State/Zip: Philadelphia, PA 19119

### CASE PARTICIPANTS

| <u>Participant Type</u> | <u>Name</u>   |
|-------------------------|---------------|
| Defendant               | Trail, Ashwin |

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### BAIL INFORMATION

Trail, Ashwin

Nebbia Status: None

| <u>Bail Action</u>   | <u>Date</u>        | <u>Bail Type</u>      | <u>Originating Court</u> | <u>Percentage</u>    | <u>Amount</u>       |
|----------------------|--------------------|-----------------------|--------------------------|----------------------|---------------------|
| Set                  | 12/31/2024         | Monetary              | Municipal Court          | 10.00%               | \$200,000.00        |
| Set                  | 01/16/2025         | Monetary              | Common Pleas             | 10.00%               | \$150,000.00        |
| Decrease Bail Amount | 04/16/2025         | Monetary              | Common Pleas             | 10.00%               | \$75,000.00         |
| <u>Surety Type</u>   | <u>Surety Name</u> | <u>Posting Status</u> | <u>Posting Date</u>      | <u>Security Type</u> | <u>Security Amt</u> |
| Third Party          | Trail, Benjamin    | Posted                | 06/12/2025               | Cash                 | \$7,500.00          |

### CHARGES

| <u>Seq.</u> | <u>Orig Seq.</u> | <u>Grade</u> | <u>Statute</u>         | <u>Statute Description</u>                                                            | <u>Offense Dt.</u> | <u>OTN</u> |
|-------------|------------------|--------------|------------------------|---------------------------------------------------------------------------------------|--------------------|------------|
| 1           | 1                | F1           | <b>18 § 2702 §§ A1</b> | Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | 12/23/2024         | U 322176-1 |
| 2           | 4                | M1           | <b>18 § 907 §§ A</b>   | Poss Instrument Of Crime W/Int                                                        | 12/23/2024         | U 322176-1 |
| 3           | 7                | M2           | <b>18 § 2701 §§ A1</b> | Simple Assault                                                                        | 12/23/2024         | U 322176-1 |
| 4           | 6                | M2           | <b>18 § 2705</b>       | Recklessly Endangering Another Person                                                 | 12/23/2024         | U 322176-1 |
| 99,999      | 5                | M2           | <b>18 § 2701 §§ A</b>  | Simple Assault                                                                        | 12/23/2024         | U 322176-1 |
| 99,999      | 2                | F3           | <b>18 § 6106 §§ A1</b> | Firearms Not To Be Carried W/O License                                                | 12/23/2024         | U 322176-1 |
| 99,999      | 3                | M1           | <b>18 § 6108</b>       | Carry Firearms Public In Phila                                                        | 12/23/2024         | U 322176-1 |

### DISPOSITION SENTENCING/PENALTIES

#### Disposition

| <u>Case Event</u>                      | <u>Disposition Date</u>                  | <u>Final Disposition</u>      |
|----------------------------------------|------------------------------------------|-------------------------------|
| <u>Sequence/Description</u>            | <u>Offense Disposition</u>               | <u>Grade</u> <u>Section</u>   |
| <u>Sentencing Judge</u>                | <u>Sentence Date</u>                     | <u>Credit For Time Served</u> |
| <u>Sentence/Diversion Program Type</u> | <u>Incarceration/Diversionary Period</u> | <u>Start Date</u>             |
| <u>Sentence Conditions</u>             |                                          |                               |

#### Lower Court Proceeding (generic)

|                                                                                           |                |                      |
|-------------------------------------------------------------------------------------------|----------------|----------------------|
| Preliminary Hearing                                                                       | 01/15/2025     | Not Final            |
| 1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | Held for Court | F1   18 § 2702 §§ A1 |
| 2 / Poss Instrument Of Crime W/Int                                                        | Held for Court | M1   18 § 907 §§ A   |
| 4 / Recklessly Endangering Another Person                                                 | Held for Court | M2   18 § 2705       |
| 99,999 / Carry Firearms Public In Phila                                                   | Withdrawn      | M1   18 § 6108       |
| 99,999 / Firearms Not To Be Carried W/O License                                           | Withdrawn      | F3   18 § 6106 §§ A1 |
| 99,999 / Simple Assault                                                                   | Held for Court | M2   18 § 2701 §§ A  |

#### Proceed to Court      Defendant Was Not Present

|                                                                                           |                  |                      |
|-------------------------------------------------------------------------------------------|------------------|----------------------|
| Information Filed                                                                         | 01/31/2025       | Not Final            |
| 1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | Proceed to Court | F1   18 § 2702 §§ A1 |
| 2 / Poss Instrument Of Crime W/Int                                                        | Proceed to Court | M1   18 § 907 §§ A   |

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## DISPOSITION SENTENCING/PENALTIES

### Disposition

#### Case Event

#### Sequence/Description

#### Sentencing Judge

#### Sentence/Diversion Program Type

#### Sentence Conditions

#### Disposition Date

#### Offense Disposition

#### Sentence Date

#### Incarceration/Diversionary Period

#### Final Disposition

#### Grade Section

#### Credit For Time Served

#### Start Date

|                                                 |                            |    |                 |
|-------------------------------------------------|----------------------------|----|-----------------|
| 3 / Simple Assault                              | Replacement by Information | M2 | 18 § 2701 §§ A1 |
| 4 / Recklessly Endangering Another Person       | Proceed to Court           | M2 | 18 § 2705       |
| 99,999 / Carry Firearms Public In Phila         | Disposed at Lower Court    | M1 | 18 § 6108       |
| 99,999 / Firearms Not To Be Carried W/O License | Disposed at Lower Court    | F3 | 18 § 6106 §§ A1 |
| 99,999 / Simple Assault                         | Charge Changed             | M2 | 18 § 2701 §§ A  |
| Replaced by 18 § 2701 §§ A1, Simple Assault     |                            |    |                 |

### Not Guilty

#### Waiver Trial

02/19/2026

#### Final Disposition

|                                                                                           |                         |    |                 |
|-------------------------------------------------------------------------------------------|-------------------------|----|-----------------|
| 1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | Not Guilty              | F1 | 18 § 2702 §§ A1 |
| 2 / Poss Instrument Of Crime W/Int                                                        | Not Guilty              | M1 | 18 § 907 §§ A   |
| 3 / Simple Assault                                                                        | Not Guilty              | M2 | 18 § 2701 §§ A1 |
| 4 / Recklessly Endangering Another Person                                                 | Not Guilty              | M2 | 18 § 2705       |
| 99,999 / Carry Firearms Public In Phila                                                   | Disposed at Lower Court | M1 | 18 § 6108       |
| 99,999 / Firearms Not To Be Carried W/O License                                           | Disposed at Lower Court | F3 | 18 § 6106 §§ A1 |
| 99,999 / Simple Assault                                                                   | Charge Changed          | M2 | 18 § 2701 §§ A  |
| Replaced by 18 § 2701 §§ A1, Simple Assault                                               |                         |    |                 |

## COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's  
Office  
District Attorney

#### Supreme Court No:

#### Phone Number(s):

215-686-8000 (Phone)

#### Address:

3 South Penn Square  
Philadelphia, PA 19107

## ATTORNEY INFORMATION

Name: Joseph P. Capone  
Private

Supreme Court No: 049830

Rep. Status: Active

Phone Number(s):  
215-557-0070 (Phone)

#### Address:

2332 S Broad St  
Philadelphia, PA 19145

Representing: Trail, Ashwin

## ENTRIES

| <u>Sequence Number</u> | <u>CP Filed Date</u> | <u>Document Date</u> | <u>Filed By</u> |
|------------------------|----------------------|----------------------|-----------------|
|------------------------|----------------------|----------------------|-----------------|

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| <u>Sequence Number</u>                                         | <u>CP Filed Date</u> | <u>Document Date</u> | <u>Filed By</u>                                |
|----------------------------------------------------------------|----------------------|----------------------|------------------------------------------------|
| 1                                                              | 01/16/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Held for Court                                                 |                      |                      |                                                |
| 3                                                              | 01/16/2025           |                      | Moss, Bradley K.                               |
| Bail Set - Trail, Ashwin                                       |                      |                      |                                                |
| 4                                                              | 01/27/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                                 |                      |                      |                                                |
| 1                                                              | 01/31/2025           |                      | Krasner, Larry                                 |
| Information Filed                                              |                      |                      |                                                |
| 1                                                              | 02/19/2025           |                      | Shaffer, Zachary C.                            |
| Defense Request For Continuance For Further Investigation      |                      |                      |                                                |
| 4                                                              | 02/19/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                                 |                      |                      |                                                |
| 1                                                              | 04/15/2025           |                      | Capone, Joseph P.                              |
| Motion for Modification of Bail                                |                      |                      |                                                |
| 4                                                              | 04/16/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                                 |                      |                      |                                                |
| 5                                                              | 04/16/2025           |                      | Shaffer, Zachary C.                            |
| Order Granting Motion for Modification of Bail - Trail, Ashwin |                      |                      |                                                |
| 6                                                              | 04/16/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Order Granting Motion for Modification of Bail                 |                      |                      |                                                |
| Bail Intake                                                    |                      |                      |                                                |
| 04/16/2025                                                     |                      |                      |                                                |
| Philadelphia County Sheriff's Office                           |                      |                      |                                                |
| 04/16/2025                                                     |                      |                      |                                                |
| Philadelphia Department of Prisons                             |                      |                      |                                                |
| 04/16/2025                                                     |                      |                      |                                                |

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|---------------------------------------------------------|----------------------|----------------------|------------------------------------------------|
| 7                                                       | 04/16/2025           |                      | Shaffer, Zachary C.                            |
| Order Granting Motion for Continuance                   |                      |                      |                                                |
| 1                                                       | 05/21/2025           |                      | Cianfrani, Deborah D.                          |
| Scheduling Conference Held                              |                      |                      |                                                |
| 3                                                       | 05/22/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                          |                      |                      |                                                |
| 1                                                       | 06/12/2025           |                      | Trail, Benjamin                                |
| Bail Posted - Trail, Ashwin                             |                      |                      |                                                |
| 1                                                       | 07/24/2025           |                      | Capone, Joseph P.                              |
| Motion for Discharge from Electronic Monitoring Program |                      |                      |                                                |
| 4                                                       | 09/12/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                          |                      |                      |                                                |
| 5                                                       | 09/12/2025           |                      | Cianfrani, Deborah D.                          |
| Defense Attorney ill                                    |                      |                      |                                                |
| 1                                                       | 12/05/2025           |                      | Cianfrani, Deborah D.                          |
| Commonwealth Advance Request For Continuance            |                      |                      |                                                |
| 5                                                       | 12/05/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                          |                      |                      |                                                |
| 6                                                       | 12/05/2025           |                      | Cianfrani, Deborah D.                          |
| Order Denying Motion to Modify House Arrest             |                      |                      |                                                |
| 3                                                       | 12/22/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                          |                      |                      |                                                |
| 1                                                       | 02/19/2026           |                      | Grey, Daine Jr.                                |
| Waiver of Jury Trial                                    |                      |                      |                                                |

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|----------------------------|----------------------|----------------------|-------------------------------------------------------------------|
| 2                          | 02/19/2026           |                      | Grey, Daine Jr.                                                   |
| Not Guilty                 |                      |                      |                                                                   |
| 3                          | 02/19/2026           |                      | Court of Common Pleas -<br>Philadelphia County<br>Grey, Daine Jr. |
| Order -- Trial Disposition |                      |                      |                                                                   |
| 1                          | 03/26/2026           |                      | Court of Common Pleas -<br>Philadelphia County                    |
| Bail Refund                |                      |                      |                                                                   |

### CASE FINANCIAL INFORMATION

Last Payment Date: 07/25/2025

Total of Last Payment: -\$12.50

| <b>Trail, Ashwin</b>      | <u>Assessment</u> | <u>Payments</u> | <u>Adjustments</u> | <u>Non Monetary</u> | <u>Balance</u> |
|---------------------------|-------------------|-----------------|--------------------|---------------------|----------------|
| Defendant                 |                   |                 |                    | <u>Payments</u>     |                |
| <b>Costs/Fees</b>         |                   |                 |                    |                     |                |
| Filing Fee (Philadelphia) | \$12.50           | (\$12.50)       | \$0.00             | \$0.00              | \$0.00         |
| Bail Bond (Philadelphia)  | \$10.00           | (\$10.00)       | \$0.00             | \$0.00              | \$0.00         |
| Filing Fee (Philadelphia) | \$12.50           | (\$12.50)       | \$0.00             | \$0.00              | \$0.00         |
| Costs/Fees Totals:        | \$35.00           | (\$35.00)       | \$0.00             | \$0.00              | \$0.00         |
| Grand Totals:             | \$35.00           | (\$35.00)       | \$0.00             | \$0.00              | \$0.00         |

\*\* - Indicates assessment is subrogated